



AL05-142

EWR D&I ANNOTATION

(seq 137)



FAN-000001L053001DP137-4990

Artemis # : 000001L053001DP137**Record Created Date :** 05/16/2006**Printed Date :** 05/16/2006

Description : THE DRIVER OF THE SUBJECT VEHICLE WAS TRAVELING ON LOCAL SIDE STREETS AND FAILED TO REDUCE THE VEHICLE'S SPEED. THE DRIVER LOST CONTROL OF THE VEHICLE AND STRUCK A TREE. THE DRIVER WAS KILLED. THE MANUFACTURER'S SERVICE RECORD INDICATES THAT THERE WAS AN ALLEGATION THAT THE AIRBAG DID NOT DEPLOY. THE DOCUMENTS SUBMITTED FOR REVIEW DO NOT CONTAIN SUFFICIENT DATA TO ASSESS IF A DEFECT TREND EXISTS. THERE ARE NO APPARENT SAFETY RECALLS THAT RELATE TO THE ISSUE RAISED BY THIS CRASH.



U.S. Department
of Transportation

**National Highway
Traffic Safety
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAR - 1 2006

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Ms. Gay P. Kent, Director
General Motors Corp.
Mail Code 480-111-E18
30200 Mound Road
Warren, MI 48090

NVS-217ph
DI05-142

Dear Ms. Kent,

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death incidents reported by General Motors Corporation in its light vehicle early warning report for the 3rd quarter of 2005. We are writing to request additional information about the following incidents:

Selected Death Incidents from the 3rd Quarter of 2005	
For Reporting Category: L	
For the following Sequence IDs (SeqID): 28, 129, 137, 173, 221, 227, 233, 238, 248, 254, 286, 291, 299, 324, 329, 337, 385, 452, 456, 459, 521, 577	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident reported in Sequence IDs identified above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to General Motors Corporation.

Vehicle: the vehicle produced by General Motors Corporation that is identified in the claim or notice.

Tire: the tire produced by General Motors Corporation that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by General Motors Corporation that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever, be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color. Furnish all documents whether verified by General Motors Corporation or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in General Motors Corporation's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After General Motors Corporation's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the claim or notice document(s) that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of all documents, photographs, videos, received from the claimant(s) or claimant's representative that identify and/or support or purport to support any allegation of a defect in the vehicle, regardless of whether General Motors Corporation disputes the assertions therein and excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.
3. Provide a copy of all investigative documents prepared by any local, state, or Federal governmental agency or personnel related to the incident, including but not limited to photographs, Police Accident Reports, or cause and origin reports.
4. At your option, provide General Motors Corporation's assessment of the circumstances that led to the incident including General Motors Corporation's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to General Motors Corporation pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. General Motors Corporation's failure to respond promptly and fully to this letter

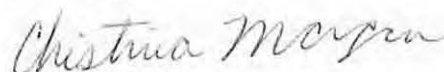
could subject General Motors Corporation to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. *See* 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If General Motors Corporation claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, General Motors Corporation must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by April 7, 2006. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

April 6, 2006

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement, NHTSA
400 Seventh Street, S.W.
Washington, DC 20590

GMRC022

NVS-217ph
DI05-142

Dear Ms. Morgan:

This letter is General Motors' (GM) response to your inquiry dated March 1, 2006, regarding certain death incidents reported by GM in its light vehicle early warning report for the 3rd quarter of 2005.

GM's response is comprised of 35 CDs (1 audio tape), one or more for each incident that is the subject of DI05-142.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 28 168230056 – 501616 2003 Cadillac CTS. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 28 168230056 – 501616_00 Request and Responses.tif. The index is numbered one through four to correspond to Inquiries no. 1 through 4 of the inquiry, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Request and Responses in the index for one of the CDs are as follows:

DI05-142
28 168230056 – 501616
2003 Cadillac CTS

Request for Information:

1. Provide a complete and full copy of the claim or notice document that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Documents

2. Provide a copy of all documents concerning the alleged defect, or alleged consequences of the alleged defect, that refer to the incident excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.

Response: None.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

28 16823056 – 501616_01_001 - is the first document responsive to Inquiry no. 1.
28 16823056 – 501616_03_001 - is the first document responsive to Inquiry no. 3.
28 16823056 – 501616_03_002 - is the second document responsive to Inquiry no. 3.

Your inquiries and our corresponding replies are as follows:

Product Investigations

Mail Code: 480-111-E18 • 30200 Mound Road • Warren, MI 48090-9010
GMRC022 DI05-142 Response.doc



1. Provide a complete and full copy of the claim or notice document(s) that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

The table below lists the incidents that are the subject of DI05-082, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. § 579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the § 579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do not involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table may not be a claim or notice of the type generally defined as such by § 579.4(c).

SELECTED DEATH INCIDENTS FROM THE 3RD QUARTER OF 2005 REPORTING CATEGORY L (22 VEHICLES FROM TEMPLATE)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
28	1G6DM57N930	LIT
129	1G1JC12F847	LIT
137	1G1AL12F857	NISM
173	UNKNOWN	RMR
221	1GCCS14X6WK	NISM
227	1GCCS19X138	NISM
233	1GNCT18WXVK	LIT
238	1GNCS13W3V2	LIT
248	1GNDT13W4Y2	NISM
254	1GNCT18W42K	LIT
286	2GCEK19T841	NISM
291	2GCEC19V341	LIT
299	1GCHK29U11E	NISM
324	1GNFK16Z04J	LIT
329	3GNFK16Z85G	NISM
337	1GNEK13Z54R	LIT
385	1GNDV23L85D	NISM
452	2GTEK13T551	LIT
456	1GTHC24U05E	LIT
459	1GTJC33U84F	NISM
521	1G2NE52T2XC	LIT
577	1G8AJ52F24Z	NISM

2. Provide a copy of all documents, photographs, videos, received from the claimant(s) or claimant's representative that identify and/or support or purport to support any allegation of a defect in the vehicle, regardless of whether General Motors Corporation disputes the assertions therein and excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.

See attached document.

3. **Provide a copy of all investigative documents prepared by any local, state, or Federal governmental agency or personnel related to the incident, including but not limited to photographs, Police Accident Reports, or cause and origin reports.**

See attached documents and photographs.

4. **At your option, provide General Motors Corporation's assessment of the circumstances that led to the incident including General Motors Corporation's analysis of the claim and/or notice regarding allegations of a defect.**

To date, GM's investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of other incidents (from lawsuits and claims) may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

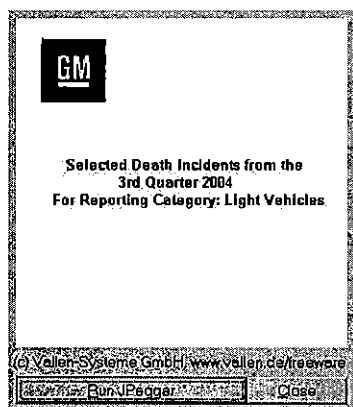


Gay P. Kent
Director
Product Investigations

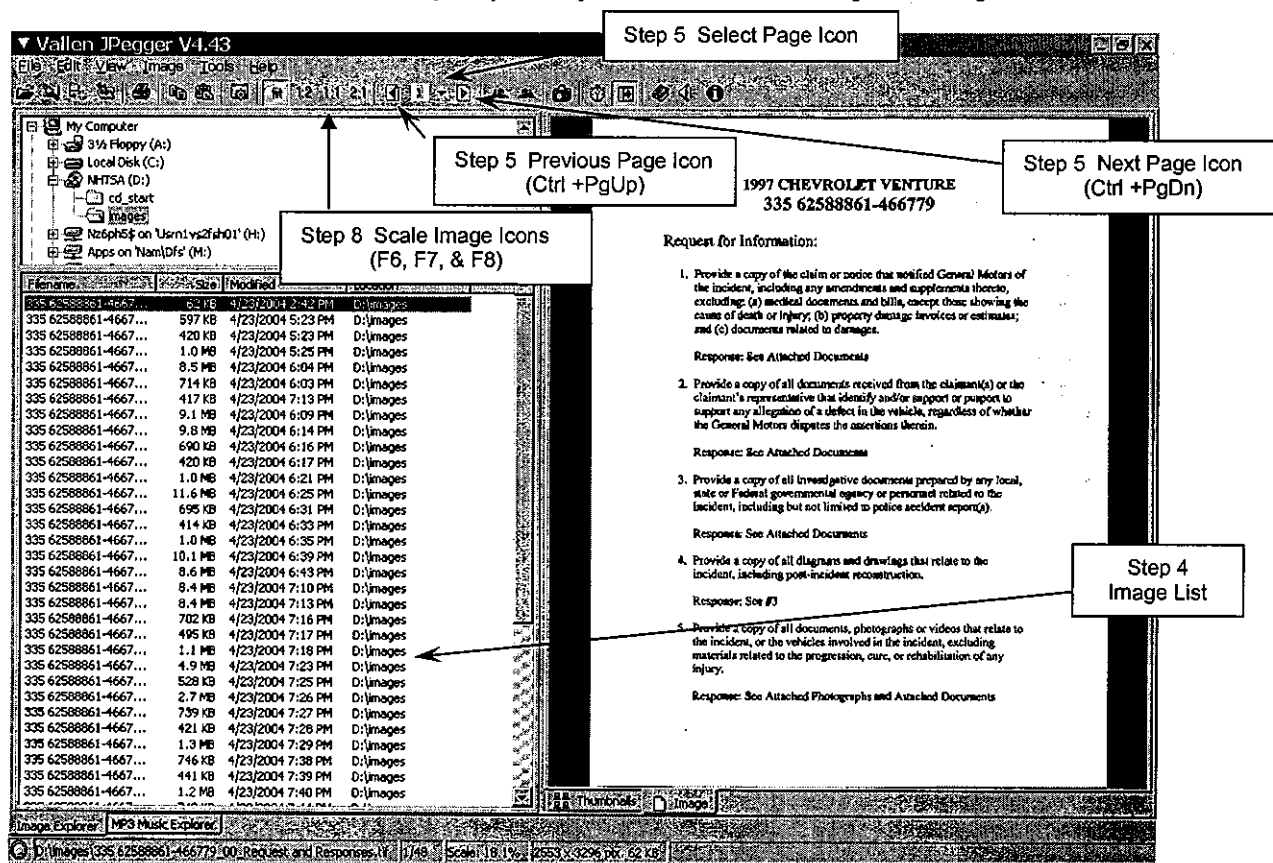
Enclosures:
35 CDs , 1 Audio tape
Attachment A

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



Product Investigations

Mail Code: 480-111-E18 • 30200 Mound Road • Warren, MI 48090-9010
 GMRC022 DI05-142 Response.doc



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

ATTORNEY OR PARTY NOTING ATTORNEY: <i>Plaintiff's name, not address</i> ERIC D. PARIS, ESQ., 5/88 147836 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES 201 S. THOMAS STREET SUITE 403 POMONA, CALIFORNIA 91766 TELEPHONE NO: 909-469-5127 FAX NO: 909-469-5126		982.2(b)(1) FOR COURT USE ONLY
ATTORNEY OR PARTY: PLAINTIFF'S COURT NAME (FOR COURT USE ONLY): SUPERIOR COURT FOR THE STATE OF CALIFORNIA JUDICIAL DISTRICT: INDIO COURT		
CASE NAME: CARDONA V. CHEVROLET		
CIVIL CASE COVER SHEET ☐ Limited ☒ Unlimited	Complex Case Designation ☐ Converter ☐ Folder Filed with first appearance by defendant (Cal. Rules of Court, rule 181)	CASE NUMBER: ASSIGNED JUDGE:

Please complete all five (5) items below.

1. Check one box below for the case type that best describes the case: ☒ Auto Tort ☐ Auto (22) ☐ Other PPD/NO (Personal Injury/Property Damage/Punitive/Engel/Defect Tort) ☐ Automobile (24) ☐ Personal Injury (25) ☐ Medical malpractice (49) ☐ Other PPD/NO (23) ☐ Non-PPD/NO (Other) Tort ☐ Business (contract) Business practice (37) ☐ Child Abuse, Neg., discrimination, false arrest (59) ☐ Defamation (e.g., slander, libel) (18) ☐ Fraud (16) ☐ Intellectual property (19) ☐ Professional negligence (e.g., legal malpractice) (26) ☐ Other Non-PPD/NO tort (35) ☐ Employment ☐ Wrongful termination (36) ☐ Contract/contractual (10) ☐ Breach of contract/warranty (10) ☐ Collections (e.g., money owed, open book accounts) (40) ☐ Insurance coverage (15) ☐ Other contract (37) ☐ Real Property ☐ Eminent domain/Inverse condemnation (14) ☐ Wrongful eviction (23) ☐ Other real property (e.g., quiet title) (28) ☐ Unintended Defendant ☐ Commercial (31) ☐ Residential (32) ☐ Drugs (38) ☐ Judicial Review ☐ Administrative (30) ☐ Prisoner; arbitration (11)	☐ Verbal contracts (22) ☐ Other judicial review (36) ☐ Professional/Corporate Civil Litigation (Cal. Rules of Court, rules 180-181) ☐ Antitrust/Traffic regulation (33) ☐ Construction defect (19) ☐ Claims involving non-tax tort (47) ☐ Previous Image ☒ Previous Image ☐ Next page ☐ Previous page ☐ Full screen image ☐ Slide show ☐ Scale to fit ☐ Scale 50% ☐ Scale 100% ☐ Scale 200% ☐ Rotate left ☐ Rotate right ☐ Rotate by 180° ☐ Copy to clipboard ☐ Copy file to ☐ Move file to ☐ Rename file ☒ Delete file ☐ Exit Image ☐ Preferences
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2. This case ☒ is ☐ is not complex under rule 1600 of the California Rules regarding exceptional judicial management.

a. ☒ Large number of separately represented parties d. ☐ Large number of Coordination or issues that will be time-consuming to resolve e. ☐ In other countries

c. ☒ Substantial amount of documentary evidence f. ☐ Substantial proof

3. ☐ monetary b. ☐ nonmonetary; declaratory or injunctive relief a. ☐

4. Number of copies of action (preferred): **FIVE**

5. This case ☐ is ☒ is not a class action suit.

Date: **JULY 3, 2003**

ERIC D. PARIS, ESQ., 5/88 147836

(USE ON FRONT COVER)

NOTICE

Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (in under the Probate, Family, or Welfare and Institutions Code), (Cal. Rules of Court, rule 1) **File this cover sheet in addition to any cover sheet required by local court rule.**

If this case is complex under rule 1800 et seq. of the California Rules of Court, you must other parties to the action or proceeding.

Unless filed in a complex case, this cover sheet shall be used for statistical purposes only.

CIVIL CASE COVER SHEET

Form adopted by the California Judicial Council at California Rule 1800, July 1, 2002

DI05-142
137 168230074 - 501661
2005 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the claim or notice document(s) that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of all documents, photographs, videos, received from the claimant(s) or claimant's representative that identify and/or support or purport to support any allegation of a defect in the vehicle, regardless of whether General Motors Corporation disputes the assertions therein and excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.

Response: See Attached Document.

3. Provide a copy of all investigative documents prepared by any local, state, or Federal governmental agency or personnel related to the incident, including but not limited to photographs, Police Accident Reports, or cause and origin reports.

Response: See Attached Documents and Photographs.

4. At your option, provide General Motors Corporation's assessment of the circumstances that led to the incident including General Motors Corporation's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, GM's investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of other incidents (from lawsuits and claims) may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Service Request Detail

SR No.	1-360727886	Ref No.		Goodwill		BRC Type	PAR
Account		Site		GW SubType		Bus. Unit	BRC
Last Name		First Name		Approval	Not Initiated	Area	PAR
Daytime #		Evening #		UCC	Restraints - (SIR) - Driver Front	Sub-Area	Initiate PAR- Collision
Address		City	Marbury	Involved Dir	Ken Dixon Chevrolet-Buick, Inc.	Safety	Yes
State	MD	ZipCd		Source	Phone	Updated	9/7/2005 3:45:44 PM
Serial #/VIN	1G1AL12F857	Model Year	2005	Priority	Medium	License #	CHEVROL
Make	Chevrolet	Warr. Start	06/15/2005	Status	Open	Owner	DUBOSE
Model	Cobalt	Mileage		Sub-Status	Satisfied	Opened	9/6/2005 3:32:01 PM
Abstract	Restraints - (SIR) - Driver Front-non deployment						
Customer Description	*DO NOT ASSUME*PAR FILE*REFER CALLS TO LARA DUBOSE 58606						

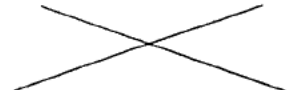
Pre-PAR

PAR Notifier	Incident Date/Time	Injuries	# Other Veh	# People in	Road Surface	Road Cond.	Fire Report#	Police Report#
Attorney	7/29/2005 3:42:00 AM	Y	0	1	Asphalt	Other		09552161
Driver Last Name	Driver First Name	Height	DOB	Disabilities				
		n/a		unknown				
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency					
Unknown	Unknown		Progressive					
Incident Loc	Intersection of Danube ct and Derby ct				Incident Desc	Driver lost control of veh and struck a tree, airbag did not deploy		
Component	Unknown				Damage Desc	Veh totaled, head on Collision with tree.		
Vehicle Loc	Police Impound Lot				Add'l Info	Do not contact cust for further information, contact attorney John Valente, 301.855.3100. Attorney will be collecting Insurance information, as well as medical records and road condition		
Emgcy Svc Names	Investigating Officer PFC Robert Taylor				Maint Loc	Unknown		

PAR Detail

Collision	Y	Non Collision	Property Damage	N	Thermal Evt	N	Spec Equip	
Vehicle Speed			Weather Condition				Prop Owner	Property Type
Last Service Date			Loc Last Service				Property Location	Prop Est Repair Cost
Veh Est Repair Cost			Spec Equip Installer				Prop Damage Description	
Primary Veh Use			Inspection Type				Inspected By	Inspection Date/Time
Veh Damage Description							Explain Other	

Report Generated for TOPOFLOWM on 9/8/2005



Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Driver	unknown
Injury Description		Medical Rpt#		Treatment Location		Treated By
Fatality		Unknown		Civista Hospital		unknown, attorney does not have med records as of yet
Street Address			City	State	Zip Code	

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:57:34 PM	DUBOSE	ESISBIQU	Escalation	ESIS - Fatalities	In Progress		FATALITY/ATTNY INVOLVEMENT
Contact Last Name		Contact First Name		Account	BAC Code		
Comments							
Attorney John Valente, 301.855.3100							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:45:49 PM	DUBOSE	DUBOSE	Outbound Call Dealer	Made Contact	Done	9/7/2005 3:46:32 PM	Called dealer
Contact Last Name		Contact First Name		Account	BAC Code		
Comments							
Crm Called dealer (301) 645-7000 line was answered and then disconnected.							
LARA DUBOSE/BRC/PAR 58606							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:52 PM	DUBOSE	DUBOSE	BRC PAR	ESIS- Fatalities	Done	9/7/2005 3:56:58 PM	Sending to ESIS
Contact Last Name		Contact First Name		Account	BAC Code		
Comments							
Notified of forwarding to ESIS due to fatality and attny involvement.							
LARA DUBOSE/BRC/PAR 58606							
Confidential Comments							

TA000085081

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:52 PM	DUBOSE	DUBOSE	PAR Case Assessment	Injury Major	Done	9/7/2005 3:57:29 PM	Fatality/attny involvement
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Type of Injury: Fatality/attny involvement

LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:51 PM	DUBOSE	DUBOSE	BRC PAR	Close	Done	9/7/2005 3:55:52 PM	Sent to ESIS
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Final Business Case Summary:

COLLISION OCCURED AND AIRBAGS DID NOT DEPLOY. DUE TO FATALITY AND ATTNY INVOLVEMENT, FORWARDING TO ESIS AND CLOSING PAR FILE. LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:51 PM	DUBOSE	DUBOSE	Outbound Call Field Rep/Whlsl	Cancelled	Done	9/7/2005 3:56:11 PM	Notification
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Notified of forwarding to ESIS-COMPLETED.

LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:51 PM	DUBOSE	DUBOSE	Outbound Call Dealer	Cancelled	Done	9/7/2005 3:56:25 PM	Notification
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Notified of forwarding to ESIS-COMPLETED.
LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:48 PM					Done	9/7/2005 3:55:14 PM	1-360727886, BRC PAR Case Assess Injury Major
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 3:42:44 PM	DUBOSE	DUBOSE	Ownership Changed	Ownership Escalated to BRC	Done	9/7/2005 3:42:44 PM	Ownership Escalated to BRC
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:10:05 AM	VASQUEZ	DUBOSE	Ownership Changed		Done	9/7/2005 10:10:05 AM	Service Request Ownership has changed FROM: LOTTM TO: DUBOSE
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:45 AM	VASQUEZ	DUBOSE	BRC PAR	Initial Contact- Phone	Done	9/7/2005 3:55:10 PM	no contact required
Contact Last Name	Contact First Name	Account	BAC Code				

Summary: No contact required with attny. Forwarding to esis due to attny involvement and fatality.
LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:44 AM	VASQUEZ	DUBOSE	BRC PAR	Initial Contact- Dealer	Done	9/7/2005 3:50:15 PM	Called dealer (301) 645-7000
Contact Last Name	Contact First Name	Account	BAC Code				
Houston	Jim	Ken Dixon Chevrolet-Buick, Inc.	113705				

Comments

Summary: KEN DIXON CHEVROLET-BUICK-CADILLAC
2298 CRAIN HWY
WALDORF, MD 20601-3145
(301) 645-7000

Crm called dlr and left message for the svc mgr Jim Houston. Crm provided the driver name, last 8 of the vin, sr and crm contact number and of the collision that occurred with fatality and airbag non deployment concern. Crm advised file will be forwarded to gm claims due to attny involvement and fatality, fyi for the dlr only.

LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:44 AM	VASQUEZ	DUBOSE	BRC PAR	Acknowledgement	Done	9/7/2005 3:54:25 PM	no contact required
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Summary: No contact required with attny. Forwarding to esis.
LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:43 AM	VASQUEZ	DUBOSE	Notify CRM		Done	9/7/2005 3:40:40 PM	File Assigned
Contact Last Name		Contact First Name		Account	BAC Code		

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:43 AM	VASQUEZ	DUBOSE	Research		Done	9/7/2005 3:41:23 PM	Researched VIN
Contact Last Name		Contact First Name		Account	BAC Code		

Comments

Summary: No other files, no open recalls

Extended description indicated the following-

DO NOT CONTACT CUSTOMER. CONTACT ATTORNEY JOHN VALENTE AT 301.855.3100 FOR FURTHER PROGRESS.

LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:43 AM	VASQUEZ	DUBOSE	BRC PAR	Initial Contact- AVM	Done	9/7/2005 3:53:24 PM	Called FAVM Craciun Valentin 914055 8289
Contact Last Name		Contact First Name		Account	BAC Code		
Carciun		Valentin		General Motors	Field		

Comments

Summary: Called FAVM Craciun Valentin 914055 8289 Crm provided the driver name, last 8 of the vin, sr and crm contact number and of the collision that occurred with fatality and airbag non deployment concern. Crm advised file will be forwarded to gm claims due to attny involvement and fatality, fyi for the avm only.

LARA DUBOSE/BRC/PAR 58606

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:42 AM	VASQUEZ	DUBOSE	BRC PAR	Case Assigned	Done	9/7/2005 3:40:37 PM	Assigned File to LARA DUBOSE an Ext. 58606
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 10:08:37 AM					Done	9/7/2005 10:09:53 AM	1-360727886, BRC PAR Assignor
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/7/2005 8:06:06 AM	LOTTM	LOTTM	Ownership Changed		Done	9/7/2005 8:06:06 AM	Service Request Ownership has changed FROM: BRADBUSH TO: LOTTM
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/6/2005 3:59:44 PM	BRADBUSH	LOTTM	Escalation	Initiate PAR	Done	9/7/2005 10:08:59 AM	Assigning Activity to PAR queue
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

CRM advised that a person from the PAR Department will contact the customer's attorney within 2 business days.

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/6/2005 3:32:17 PM	BRADBUSH	BRADBUSH	Inbound Call Third Party	Complex Request	Done	9/7/2005 3:40:31 PM	Initiate PAR
Contact Last Name	Contact First Name	Account	BAC Code	Description			
				Kimberly Thorne, Attorney			

Comments

Third party states: customer's daughter was involved in a fatal accident where the airbag did not deploy. Third party states was a single vehicle accident - driver lost control and struck a tree head on, becoming trapped in the veh. The airbag did not deploy. It is unknown whether or not the driver was wearing her seatbelt, only has preliminary police report, will be requesting further documentation from the police as well as the driver's medical records for further information.

CRM advised: Escalating case to PAR, however, will need the information of the insurance agent involved as well as the medical information and the road conditions information. CRM advised someone will be contacting the cust's attorney John Valente, as requested within 2-3 business days.

hannon Reed/cac/pdx

Confidential Comments

USC Information

USC Code	Symptom	Description
CAC	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front

GM Vehicle Inquiry System Summary

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[Help](#)

VIN :	1G1AL12F857
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VEHICLE INFORMATION

Merchandising Model :	1AL37 -2005 COBALT 2-DOOR LS COUPE			Warranty Start Date :		06/15/2005	
BARS Order Type :	70 - RETAIL - STOCK						
Delivering Dealer :	KEN DIXON CHEVROLET-BUICK-CADILLAC 2298 CRAIN HWY WALDORF , MD 20601-3145 (301) 645-7000			Selling Source :		13 - CHEVROLET	
				Site Code :		14142	
				Business Associate Code :		113705	
Service Contract :	No	Branded Title :	No	Warranty Block :	No	PDI Status :	Paid

REQUIRED FIELD ACTIONS

Vehicle Has No Current Record Of Outstanding Campaigns

SERVICE INFORMATIONAL ITEMS

Vehicle Has No Current Record Of Outstanding Service Information

ON STAR AND XM SATELLITE RADIO INFORMATION

Vehicle Has No Associated On Star or XM Radio Information.

APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER	06/15/2005	69 miles	06/15/2008	36069 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH	06/15/2005	69 miles	06/15/2011	100069 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	06/15/2005	69 miles	06/15/2013	80069 miles
36/36000 FEDERAL EMISSION	06/15/2005	69 miles	06/15/2008	36069 miles
60/60000 POWERTRAIN - U.S.	06/15/2005	69 miles	06/15/2010	60069 miles

CLAIM HISTORY

R.O Date	R.O Number	Type	Labor Operation	Odometer Reading

<http://198.208.187.167/gmvis/main/Summary?languageSelected=EN&VIN=1G1AL12F857...> 9/8/2005

03/30/2005	A	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	0 miles
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CHECK HISTORY INFORMATION**Vehicle Has No Associated Check History Information.**

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GM Vehicle Inquiry System Claim History

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VIN :	1G1AL12F857
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CLAIM HISTORY

Repair Order Date :		03/30/2005		Repair Order Number :		A95416		Odometer Reading :		0 miles	
Serviced By :		BELL MOTOR COMPANY, INC. PO BOX 656 LEONARDTOWN, MD 20650-0656 (301) 475-2355				Selling Source :		13 - CHEVROLET			
						Site Code :		14076			
						Business Associate Code :		113646			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
04/05/2005	575	01	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME		N/A		N/A	N/A	\$ 73.35	N

CHECK HISTORY

Vehicle Has No Associated Check History.

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GM Vehicle Inquiry System Vehicle Build

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VIN	1G1AL12F857
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VEHICLE BUILD

Merchandising Model :	1AL37 -2005 COBALT 2-DOOR LS COUPE		
Gross Vehicle Weight Rating :	1705 kg (3760 lb)	Order Number :	HZJBRV
Build Date :	03/18/2005	Build Plant :	157A

OPTION CODES

AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS	AR9 - DELUXE FRONT BUCKET SEAT
BZ2 - GM PRODUCTION WEEK #11	C67 - ELECT. FRONT AIR CONDITIONER
DG7 - ELEC TWIN REMOTE SPORT MIRRORS	FE1 - SUSPENSION SYSTEM-SOFT RIDE
FE9 - 50-STATE EMISSIONS	FY1 - TRANS/AXLE 3.63 RATIO
IPC - INTERIOR TRIM DESIGN	JM4 - 4-WHEEL ANTI-LOCK BRAKE SYSTEM
K64 - 115 AMP GENERATOR	LOD - ASSEMBLY PLANT - LORDSTOWN,OHIO
L61 - 2.2L DOHC 4 CYL ENGINE	MN5 - 4 SPEED AUTO TRANSMISSION
MX0 - 4-SPD. AUTO. TRANS. W/OVERDRIVE	NP5 - LEATHER WRAPPED STEERING WHEEL
NT7 - FEDERAL EMISSION TIER 2	NW7 - TRACTION CONTROL
PFD - 16" ALUMINUM WHEEL	QMF - P205/55R16 TOURING BW TIRES
RE8 - UPGRADE ORNAMENTATION	R6F - IDENTIFY B-CODE USERS
SLM - STOCK ORDERS	TV5 - SPORT PACKAGE
T37 - DELUXE FOG LAMPS	T43 - REAR DECK-LID SPOILER
UK3	UN0 - AM/FM STEREO W/CD PLAYER
UQ4 - BASE SPEAKER SYSTEM	VK3 - FRONT LICENSE PLATE MOUNT
VM3 - CONSUMER INFORMATION LABEL	VY7 - LEATHER SHIFT KNOB
V73 - STATEMENT OF VEHICLE CERT.- U.S. /CANADA	1SB - 1SB SPORT PACKAGE INCLUDES: *WHITE FACED SPORT GAUGES *LEATHER WRAPPED SHIFT LEVER *LEATHER WRAPPED STEERING WHEEL *SPORT FASCIA W/FOG LAMPS *REAR SPOILER *16" ALUMINUM WHEELS *P205/55R16 TIRES *CHROME EXHAUST TIP
1SZ - OPTION PACKAGE DISCOUNT	19C - EBONY SPORT CLOTH

<http://198.208.187.167/gmvis/main/VehicleBuild?languageSelected=EN&VIN=1G1AL12F...> 9/8/2005

19I - EBONY	6AP
7AP	74U - VICTORY RED
8AB - REAR SPRING	9AB - REAR SPRING

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CDR File Information

Vehicle Identification Number	1G1AL12F857
Investigator	Michael R. Tierney, Sr.
Case Number	501669
Investigation Date	Wednesday, September 14 2005
Crash Date	Friday, July 29 2005
Filename	1G1AL12F857 CDR
Saved on	Wednesday, September 14 2005 at 10:06:36 AM
Collected with CDR version	Crash Data Retrieval Tool 2.7112
Collecting program verification number	31577E64
Reported with CDR version	Crash Data Retrieval Tool 2.713
Reporting program verification number	7ABD298
Interface used to collected data	Block number: 00 Interface version: 44 Date: 07-18-05 Checksum: 2E00
Event(s) recovered	Non-Deployment

SDM Data Limitations**SDM Recorded Crash Events:**

There are two types of SDM recorded crash events. The first is the Non-Deployment Event. A Non-Deployment Event is an event severe enough to "wake up" the sensing algorithm but not severe enough to deploy the air bag(s). It can contain Pre-Crash and Crash data. The SDM can store up to one Non-Deployment Event. This event can be overwritten by an event that has a greater SDM recorded vehicle forward velocity change. This event will be cleared by the SDM after the ignition has been cycled 250 times.

The second type of SDM recorded crash event is the Deployment Event. It also can contain Pre-Crash and Crash data. The SDM can store up to two different Deployment Events, if they occur within five seconds of one another. Deployment Events cannot be overwritten or cleared from the SDM. Once the SDM has deployed the air bag, the SDM must be replaced. The data in the Non-Deployment Event file will be locked after a Deployment Event, if the Non-Deployment Event occurred within 5 seconds before the Deployment Event unless a Deployment Level Event occurs within 5 seconds after the Deployment Event, then the Deployment Level Event will overwrite the Non-Deployment Event file.

SDM Data Limitations:

- SDM Recorded Vehicle Forward Velocity Change reflects the change in forward velocity that the sensing system experienced during the recorded portion of the event. SDM Recorded Vehicle Forward Velocity Change is the change in velocity during the recording time and is not the speed the vehicle was traveling before the event, and is also not the Barrier Equivalent Velocity. This data should be examined in conjunction with other available physical evidence from the vehicle and scene when assessing occupant or vehicle forward velocity change. For Deployment Events and Deployment Level Events, the SDM will record 220 milliseconds of data after deployment criteria is met and up to 70 milliseconds before deployment criteria is met. For Non-Deployment Events, the SDM will record the first 300 milliseconds of data after algorithm enable. The minimum SDM Recorded Vehicle Forward Velocity Change, that is needed to record a Non-Deployment Event event, is 5 MPH.
- Maximum Recorded Vehicle Velocity Change is the maximum recorded velocity change in the vehicle's combined "X" and "Y" axis.
- Calculated Principle Direction of Force (PDOF) is the Arctangent of the maximum observed latitude velocity change divided by the maximum observed longitude velocity change. PDOF is displayed where zero degrees is located at the front of the vehicle, with 90 degrees is displayed to the right side of the vehicle and so on, clockwise around the vehicle.
- Event Recording Complete will indicate if data from the recorded event has been fully written to the SDM memory or if it has been interrupted and not fully written.
- SDM Recorded Vehicle Speed accuracy can be affected if the vehicle has had the tire size or the final drive axle ratio changed from the factory build specifications.
- Brake Switch Circuit Status indicates the status of the brake switch circuit.
- Pre-Crash Electronic Data Validity Check Status indicates "Data Invalid" if the SDM receive an invalid message from the module sending the pre-crash data.
- Driver's and Passenger's Belt Switch Circuit Status indicates the status of the seat belt switch circuit. The Passenger Belt Switch Circuit Status for 2006 Chevrolet Cobalt Sport Coupe (AP) model vehicles, with the option package that includes Recaro brand seats (RPO ALV), will always report a default value of "Buckled".
- The Time Between Non-Deployment and Deployment Events is displayed in seconds. If the time between the two events is greater than 5 seconds, "N/A" is displayed in place of the time. If the value is negative, then the Deployment Event occurred first. If the value is positive, then the Non-Deployment Event occurred first.
- If power to the SDM is lost during a crash event, all or part of the crash record may not be recorded.
- The ignition cycle counter relies upon the transitions through OFF->RUN->CRANK power-moding messages, on the GMLAN communication bus, to increment the counter. Applying and removing of battery power to the module will not increment the ignition counter.

SDM Data Source:

1G1AL12F857

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Printed on: Saturday, September 17 2005 at 08:54:35 PM

All SDM recorded data is measured, calculated, and stored internally, except for the following:

- Vehicle Status Data (Pre-Crash) is transmitted to the SDM, by various vehicle control modules, via the vehicle's communication network.
- The Belt Switch Circuit is wired directly to the SDM.

System Status At AE

Vehicle Identification Number	**1AL12F*5
Low Tire Pressure Warning Lamp (If Equipped)	OFF
Vehicle Power Mode Status	Accessory
Remote Start Status (If Equipped)	Inactive
Run/Crank Ignition Switch Logic Level	Active
Brake System Warning Lamp (If Equipped)	OFF

System Status At 1 second

Transmission Range (If Equipped)	Second Gear
Transmission Selector Position (If Equipped)	Fourth Gear
Traction Control System Active (If Equipped)	Yes
Service Engine Soon (Non-Emission Related) Lamp	OFF
Service Vehicle Soon Lamp	OFF
Outside Air Temperature (degrees F) (If Equipped)	72.5
Left Front Door Status (If Equipped)	Closed
Right Front Door Status (If Equipped)	Closed
Left Rear Door Status (If Equipped)	Unused
Right Rear Door Status (If Equipped)	Unused
Rear Door(s) Status (If Equipped)	Closed

Pre-crash data

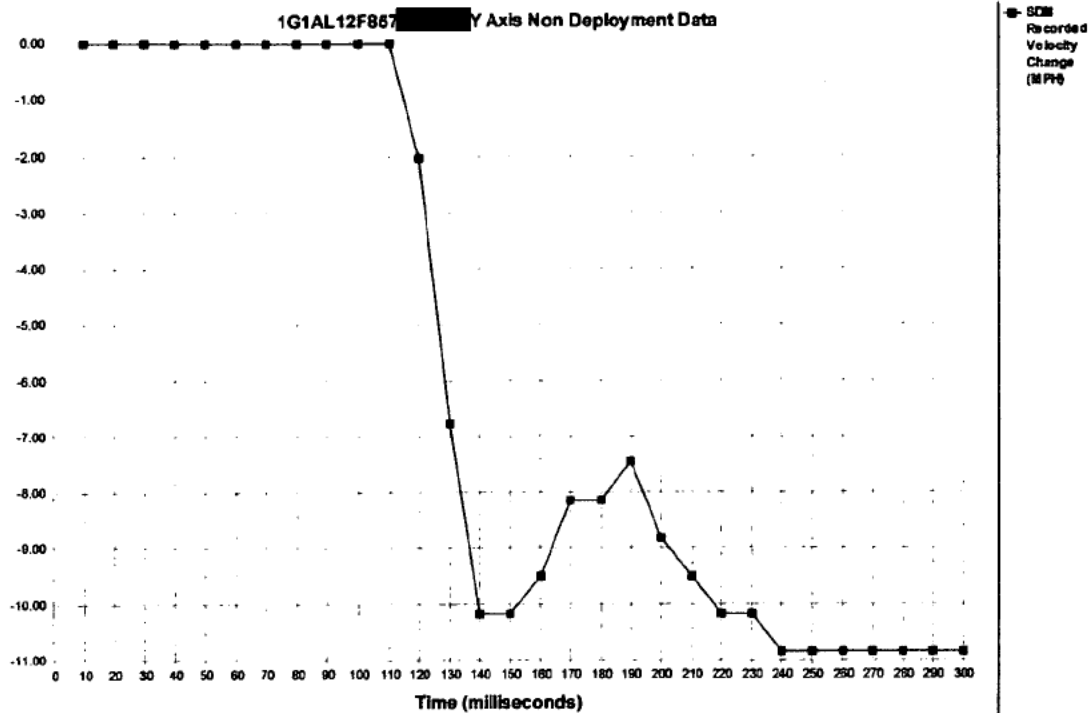
Parm	-2 sec	-1 sec
Reduced Engine Power Mode	OFF	OFF
Cruise Control Active (If Equipped)	No	No
Cruise Control Resume Switch Active (If Equipped)	No	No
Cruise Control Set Switch Active (If Equipped)	No	No

Pre-crash data

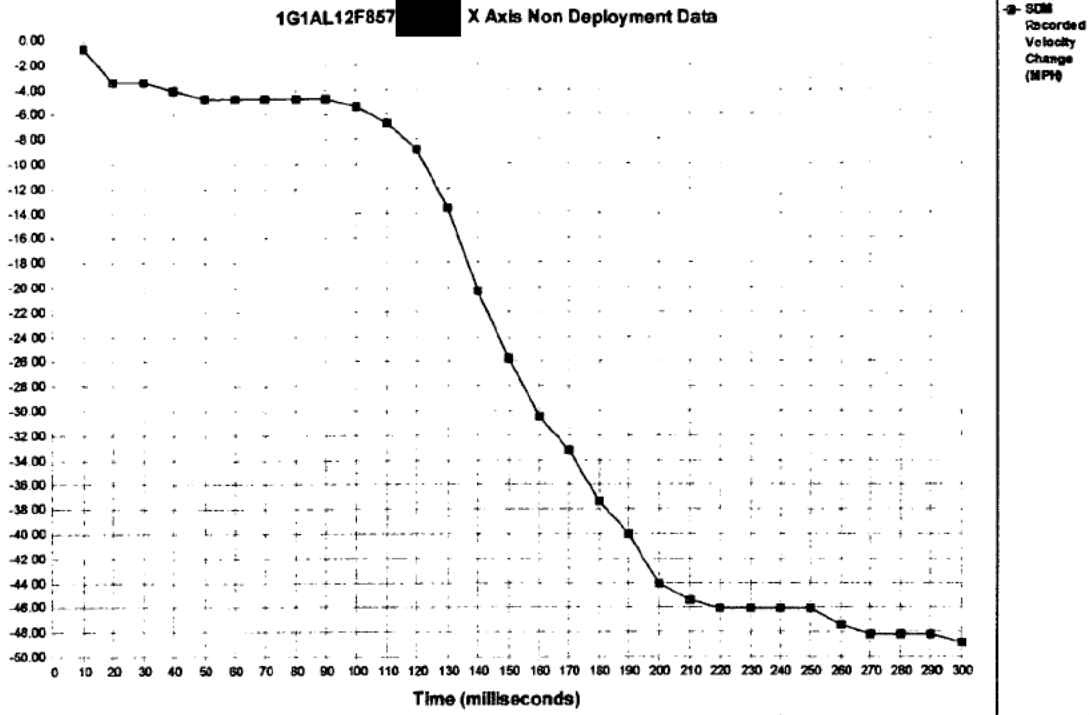
Parm	-5 sec	-4 sec	-3 sec	-2 sec	-1 sec
Vehicle Speed (MPH)	53	57	62	65	69
Engine Speed (RPM)	4736	4992	5312	5568	6016
Percent Throttle	100	100	100	100	100
Accelerator Pedal Position	96	96	96	96	96
Antilock Brake System Active (If Equipped)	No	No	No	No	No
Lateral Acceleration (feet/s ²)(If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid
Yaw Rate (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid
Steering Wheel Angle (If Equipped)	0	0	0	0	0
Vehicle Dynamics Control Active (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid

System Status At Non-Deployment

Ignition Cycles At Investigation	465
SIR Warning Lamp Status	OFF
SIR Warning Lamp ON/OFF Time (seconds)	563220
Number of Ignition Cycles SIR Warning Lamp was ON/OFF Continuously	464
Ignition Cycles At Event	465
Ignition Cycles Since DTCs Were Last Cleared	158
Driver's Belt Switch Circuit Status	UNBUCKLED
Diagnostic Trouble Codes at Event, fault number: 1	N/A
Diagnostic Trouble Codes at Event, fault number: 2	N/A
Diagnostic Trouble Codes at Event, fault number: 3	N/A
Diagnostic Trouble Codes at Event, fault number: 4	N/A
Diagnostic Trouble Codes at Event, fault number: 5	N/A
Diagnostic Trouble Codes at Event, fault number: 6	N/A
Maximum SDM Recorded Velocity Change (MPH)	49.99
Algorithm Enable to Maximum SDM Recorded Velocity Change (msec)	300
Driver First Stage Deployment Loop Commanded	No
Driver Second Stage Deployment Loop Commanded	No
Driver Side Deployment Loop Commanded	No
Driver Pretensioner Deployment Loop Commanded	No
Driver (Initiator 1) Roof Rail/Head Curtain Loop Commanded	No
Driver (Initiator 2) Roof Rail/Head Curtain Loop Commanded	No
Driver Knee Deployment Loop Commanded	No
Passenger First Stage Deployment Loop Commanded	No
Passenger Second Stage Deployment Loop Commanded	No
Passenger Side Deployment Loop Commanded	No
Passenger Pretensioner Deployment Loop Commanded	No
Passenger (Initiator 1) Roof Rail/Head Curtain Loop Commanded	No
Passenger (Initiator 2) Roof Rail/Head Curtain Loop Commanded	No
Passenger Knee Deployment Loop Commanded	No
Second Row Left Side Deployment Loop Commanded	No
Second Row Left Pretensioner Deployment Loop Commanded	No
Third Row Left Roof Rail/Head Curtain Loop Commanded	No
Second Row Right Side Deployment Loop Commanded	No
Second Row Right Pretensioner Deployment Loop Commanded	No
Third Row Right Roof Rail/Head Curtain Loop Commanded	No
Second Row Center Pretensioner Deployment Loop Commanded	No
Multiple Event Counter	1
An Event(s) Preceded the Recorded Event(s)	No
An Event(s) was in Between the Recorded Event(s)	No
An Event(s) Followed the Recorded Event(s)	Yes
The Event(s) Not Recorded was a Deployment Event(s)	No
The Event(s) Not Recorded was a Non-Deployment Event(s)	Yes
Crash Record Locked	No
Vehicle Event Data (Pre-Crash) Associated With This Event	Yes
Deployment Event Recorded in the Non-Deployment Record	No
Event Recording Complete	Yes
Calculated Principle Direction of Force (PDOF) degrees	15



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
Y Axis Recorded Velocity Change (MPH)	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	-2.03	-6.78	-10.17	-10.17
Time (milliseconds)	160	170	180	190	200	210	220	230	240	250	260	270	280	290	300
Y Axis Recorded Velocity Change (MPH)	-9.49	-8.13	-8.13	-7.46	-8.81	-9.49	-10.17	-10.17	-10.85	-10.85	-10.85	-10.85	-10.85	-10.85	-10.85



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
X Axis Recorded Velocity Change (MPH)	-0.68	-3.39	-3.39	-4.07	-4.74	-4.74	-4.74	-4.74	-4.74	-5.42	-6.78	-8.81	-13.56	-20.34	-25.76
Time (milliseconds)	160	170	180	190	200	210	220	230	240	250	260	270	280	290	300
X Axis Recorded Velocity Change (MPH)	-30.50	-33.21	-37.28	-39.99	-44.06	-45.42	-46.09	-46.09	-46.09	-46.09	-47.45	-48.13	-48.13	-48.13	-48.80

Hexadecimal Data

This page displays all the data retrieved from the air bag module.
It contains data that is not converted by this program.

```

$01 08 00 00 00 00 00 00
$02 30 00 00 00 00 00 00
$03 00 00 00 00 00 00 00
$04 00 00 00 00 00 00 00
$05 00 00 00 00 00 00 00
$06 00 0A 00 03 0A 00 00
$07 00 20 00 00 00 00 00
$08 00 00 00 00 00 00 00
$09 00 00 00 00 00 00 00
$0A 00 00 00 00 00 00 00
$0B 00 00 0F 0F 03 00 00
$0C 00 00 00 00 00 00 00
$0D 00 00 40 00 00 00 00
$0E 00 00 00 00 00 00 00
$0F 00 00 00 00 00 00 00
$10 00 00 00 00 00 00 00
$11 00 00 00 00 00 00 00
$12 00 00 00 00 00 00 00
$13 00 00 00 00 00 00 00
$14 00 00 00 00 00 00 00
$15 00 00 00 00 00 00 00
$16 03 06 0C 16 34 00 00
$17 00 00 00 00 00 00 00
$18 00 00 00 00 00 00 00
$19 00 00 00 00 00 00 00
$1B 3F 30 00 66 00 78 00
$1C 3F 00 00 02 00 18 00
$1D 00 00 00 00 00 00 00
$1E 00 00 00 00 00 00 00
$1F 20 00 00 00 00 00 00
$20 40 00 00 00 00 00 00
$21 00 00 00 00 00 F0 00 00
$22 00 A7 00 00 00 00 00
$24 00 00 00 00 00 00 00
$25 00 00 00 00 00 00 00
$26 00 00 00 00 00 00 00
$27 FF 00 FF 00 00 00 00
$2A 00 00 00 00 00 00 00
$2B 00 00 00 00 00 00 00
$2D 00 00 00 00 00 00 00
$2E 80 00 39 00 00 00 00
$2F 00 9E 01 D1 00 00 00
$30 9D 00 00 00 00 00 00
$31 F6 F6 F6 F6 F6 00 00
$32 00 00 00 00 00 00 00
$33 FE FE FE FE FE 00 00
$34 5E 57 53 4E 4A 00 00
$35 6F 69 63 5C 56 00 00
$36 00 00 00 00 00 00 00
$37 00 80 00 02 04 00 20
$38 7D 00 C0 00 03 C0 00
$39 00 00 00 00 00 80 00
$3A 00 00 00 00 00 80 00
$3B 03 06 0C 00 00 00 00
$3C 00 00 00 00 00 00 C0
$3D 31 41 4C 31 32 46 00
$3E 35 59 54 16 00 00 00
$3F 29 00 50 00 00 00 00
$40 20 A5 00 00 00 00 00
$41 00 00 00 00 00 00 00
$42 00 DC 02 01 D0 00 00

```

```

$43 9E 01 D1 00 00 00 00
$44 00 00 00 00 00 00 00
$45 00 00 00 00 00 00 00
$46 00 00 00 00 00 00 00
$47 00 FF 00 FB 00 FB 00
$48 00 FA 00 F9 00 F9 00
$49 00 F9 00 F9 00 F9 00
$4A 00 F8 00 F6 FD F3 00
$4B F6 EC F1 E2 F1 DA 00
$4C F2 D3 F4 CF F4 C9 00
$4D F5 C5 F3 BF F2 BD 00
$4E F1 BC F1 BC F0 BC 00
$4F F0 BC F0 BA F0 B9 00
$50 F0 B9 F0 B9 F0 B8 00
$51 70 00 00 00 00 00 00
$52 80 00 00 00 00 00 00
$53 1E 15 40 00 00 00 00
$54 00 00 00 00 00 00 00
$55 00 00 00 00 00 00 00
$67 00 00 00 00 00 00 00
$68 F8 F8 90 C0 00 00 00
$69 80 FF FF FF FF 00 00
$6A FF FF FF 00 00 00 00
$6B FF FF FF FF FF FF 00
$6C FF FF FF FF FF FF 00
$6D FF FF FF FF FF FF 00
$6E FF FF FF FF FF FF 00
$6F FF FF FF FF FF FF 00
$70 FF FF FF FF FF FF 00
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$B2 FF FF FF FF FF
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$B7 50 AA 01 0F 01
$B8 54 41 68 04 02
$C1 30 46 30 31
$CA 30 46 30 31
$CB 00 E8 B0 18
$CC 00 E8 B0 18
$D1 00 00
$DB 00 00
$DC 00 00

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Comments

Downloaded directly through the SDM

air bags have not deployed

vehicle will not power up

Downloaded at the Police impound lot

Present at inspection claimants expert, claimants attorney, claimants father

Cristy Gibbof ESIS and Pat Burley of TLI

No keys to vehicle, vehicle can not be powered up

501661

THOMAS V. MIKE MILLER, JR. P.A.

THOMAS V. MIKE MILLER, JR.
JOHN P. VALENTE, III
MELISSA A. MILLER
MONISE A. STEPHENSON
MICHELLE G. HERSH

ATTORNEYS AT LAW
2960 PENWICK LANE
P.O. BOX 364
DUNKIRK, MARYLAND 20754
301-855-3100 • 410-257-0400
FAX: 301-855-8251

8808 OLD BRANCH AVENUE
CLINTON, MARYLAND 20735
301-856-3030
FAX: 301-856-4029

of Counsel
JOSEPHINE A. LYNCH
WILLIAM A. BUTLER

October 5, 2005

RECEIVED
OCT 14 2005
ESIS-GM CLAIMS UNIT

Kristy Gibb
ESIS - General Motors
300 Renaissance Center
MC 482C20D71
Detroit, MI 48265

Re: My Clients: [REDACTED] and [REDACTED] Individually and as Personal
Representative of the Estate of [REDACTED] a minor
Date of Accident: 7/29/05
Your File Number: 1-360727886

Dear Ms. Gibb:

Per your request, enclosed find a Certificate of Death and Post Mortem Examination Report evidencing the fact Amber died from abdominal injuries.

As you are aware, I had the subject vehicle inspected and the data obtained from the "black box" interpreted by engineers from CED Accident Analysis Inc. It is the opinion of these experts that the air bag system was defective, as the air bags should have deployed. Moreover, these experts are of the opinion that the abdominal injuries that ended [REDACTED] life could have been prevented had the air bags deployed. Simply put, the air bags would have stopped [REDACTED] from striking the steering wheel and sustaining life-ending injuries.

Once you have reviewed this documentation and discussed this case with your engineers and attorneys, please give me a call to discuss your position with respect to liability, causation and damages. Thank you.

Very truly yours,

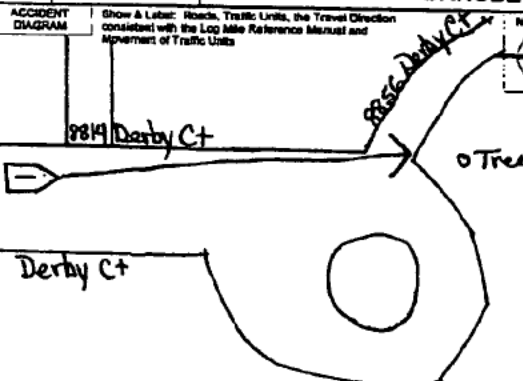
John P. Valente, III

JPV:kat

TA000085103

State of Maryland Motor Vehicle Accident Report

1371961

REPORT NO. 09552161		PAGE OF 1		ACCIDENT DATE 07/29/05		ACCIDENT TIME 0342		REPORT TYPE ☒ FATAL ☐ INJURY ☐ P.D. ☒ HIT & RUN ☐ NON-TRAFFIC		RESEARCH		LOCAL CASE NUMBER (b) (6)		LOCAL CODES		PHOTOGRAPH ☐ NO ☒ YES	
INVESTIGATING OFFICER ID Pfc Robert Taylor #289				AGENCY AND AREA ZH 1A3		SUPERVISING OFFICER ID Sgt H. Thompson #113				REVIEWER ID#		CODE - AND - NAME OF MUNICIPALITY 00				COUNTY 08	
RD CHAR 01		RTE. NUM. Accident Occurred On CO 0782		ROAD NAME DERBY CT		IN LANE TRAP SIG NO		ON RAMP ☐ NO ☒ YES		Ramp Number (Direction) 0		9 - Hot Ramp ☐ NO ☒ YES		IN INTERSECTION ☐ NO ☒ YES			
RD COND 01		JNT - RTE CO 0781		INTERSECTING ROAD NAME or Log Mile Reference Manual Description DANUBE CT		MILEPT 000.14		Dir N		Dist of Acc 9 INT-RTE / Rte A Dr 00.20		Mile ☒ MI ☐ N					
RD DIV 01		ACCIDENT DIAGRAM 		Show & Label: Roads, Traffic Units, the Travel Direction consistent with the Log Mile Reference Manual and Movement of Traffic Units		DESCRIBE ACCIDENT: briefly describe units by numbers. Also identify the following: a) the OBJECT DAMAGED AND NATURE OF DAMAGE (Property other than vehicles) and b) the NAME & ADDRESS OF OWNER when applicable.		Vehicle #1 was traveling north on Derby Ct when the driver failed to reduce speed. The driver lost control of the vehicle and struck a tree trapping the driver inside. The driver was extricated from the vehicle and transported to the hospital where she sercamed to her injuries. CHARLES COUNTY SHERIFF'S OFFICE RECORDS MANAGEMENT RE-DISSEMINATION PROHIBITED COMAR 12.15.10.20C/F200.33 METSOL 10-61 (A) C/P2-200(A) DESTROY WHEN NO LONGER NEEDED GIVEN TO: [Redacted] OPEN BY DATE: 1374/8-9-05									
GPF COND 01		CM ZONE ☒ NO ☐ YES		JUNCTN 01		EVENT-1 09		EVENT-2 00		FLX O&I 11		COLL TY 17		LIGHT 04		WEATHER 01	
UNIT # 43 01		NAME (First, Middle Last) [Redacted]		SEX 02		UNIT # 43 02		NAME (First, Middle Last) [Redacted]		SEX 02		ADDRESS (No. Street, City, State, Zip) MARBURY, MD		TEL [Redacted]		EINS 40 05	
TYPE OF UNIT ☒ DRIVER ☐ PED		ADDRESS (No. Street, City, State, Zip) [Redacted]		TEL [Redacted]		EINS 40 05		TYPE OF UNIT ☒ DRIVER ☐ PED		ADDRESS (No. Street, City, State, Zip) [Redacted]		TEL [Redacted]		EINS 40 05			
MOVEMENT CONDITN 01		SUBST UU		TEST UU		RESULT 00		FOR PEDS ONLY 00		AGE 55		TYPE 56		LOCATN 57		OCCY 58	
SPEED UNIT 25		SAF EQU 01		EQ PROB 31		EJECT 01		CITATION NUMBER (S) 01		FAULTY MOVS ☒ YES ☐ NO		SPEED UNIT 80		SAF EQU 81		EQ PROB 82	
CONDO 01		DRIVERS LICENSE NUMBER [Redacted]		STATE MD		CLASS C		CONDO 01		DRIVERS LICENSE NUMBER [Redacted]		STATE MD		CLASS C			
CONTINU 01		DR DATE OF BIRTH [Redacted]		BUREAU OF CONSTRUCTION ☐ PARKED ☐ HIT & RUN ☐ CAUGHT FIRE ☐ DRIVERLESS ☐ HAZ MAT NUMBER 00		CONTINU 01		DR DATE OF BIRTH [Redacted]		BUREAU OF CONSTRUCTION ☐ PARKED ☐ HIT & RUN ☐ CAUGHT FIRE ☐ DRIVERLESS ☐ HAZ MAT NUMBER 00		CONTINU 01		DR DATE OF BIRTH [Redacted]		BUREAU OF CONSTRUCTION ☐ PARKED ☐ HIT & RUN ☐ CAUGHT FIRE ☐ DRIVERLESS ☐ HAZ MAT NUMBER 00	
BODY TY 02		COMMER. U.S. DOT NUMBER [Redacted]		ICC NUMBER [Redacted]		BODY TY 02		COMMER. U.S. DOT NUMBER [Redacted]		ICC NUMBER [Redacted]		BODY TY 02		COMMER. U.S. DOT NUMBER [Redacted]		ICC NUMBER [Redacted]	
MOBT - HE 09		OWNER OR CARRIER NAME (WHEN "SAME" AS DRIVER) [Redacted]		TEL [Redacted]		MOBT - HE 09		OWNER OR CARRIER NAME (WHEN "SAME" AS DRIVER) [Redacted]		TEL [Redacted]		MOBT - HE 09		OWNER OR CARRIER NAME (WHEN "SAME" AS DRIVER) [Redacted]		TEL [Redacted]	
CONTRIB CIRCUM 02		Same		TOWED VEH(S) 00		CONTRIB CIRCUM 02		Same		TOWED VEH(S) 00		CONTRIB CIRCUM 02		Same		TOWED VEH(S) 00	
YEAR & MAKE OF VEHICLE 18 05 CHEV		MODEL COBALT		YEAR & MAKE OF VEHICLE 18 05 CHEV		MODEL COBALT		YEAR & MAKE OF VEHICLE 18 05 CHEV		MODEL COBALT		YEAR & MAKE OF VEHICLE 18 05 CHEV		MODEL COBALT		YEAR & MAKE OF VEHICLE 18 05 CHEV	
EXP YR & REGISTR # STATE 00 07 MD		AREAS DAMAGED 02 03		INSURER PROGRESSIVE		EXP YR & REGISTR # STATE 00 07 MD		AREAS DAMAGED 02 03		INSURER PROGRESSIVE		EXP YR & REGISTR # STATE 00 07 MD		AREAS DAMAGED 02 03		INSURER PROGRESSIVE	
VEHICLE ID NUMBER 00 1G1AL12F857		POLICY NUMBER [Redacted]		VEHICLE ID NUMBER 00 1G1AL12F857		POLICY NUMBER [Redacted]		VEHICLE ID NUMBER 00 1G1AL12F857		POLICY NUMBER [Redacted]		VEHICLE ID NUMBER 00 1G1AL12F857		POLICY NUMBER [Redacted]		VEHICLE ID NUMBER 00 1G1AL12F857	
DAM EXT 05		VEHICLE REMOVED BY G&M TOWING		VEHICLE REMOVED TO G&M TOWING		DAM EXT 05		VEHICLE REMOVED BY G&M TOWING		VEHICLE REMOVED TO G&M TOWING		DAM EXT 05		VEHICLE REMOVED BY G&M TOWING		VEHICLE REMOVED TO G&M TOWING	
TRAFFIC UNIT # 01		SEATING POSITION 01		CODE all injured & uninjured PASSENGERS below. Use "TV" for witness in TRAP UNIT and SEAT column.		TRAFFIC UNIT # 01		SEATING POSITION 01		CODE all injured & uninjured PASSENGERS below. Use "TV" for witness in TRAP UNIT and SEAT column.		TRAFFIC UNIT # 01		SEATING POSITION 01		CODE all injured & uninjured PASSENGERS below. Use "TV" for witness in TRAP UNIT and SEAT column.	
INJURED TAKEN BY A AMBULANCE 158		INJURED TAKEN TO CIVITA		EINS RUN REPORT # E052100002		INJURED TAKEN BY B		INJURED TAKEN TO 		EINS RUN REPORT # 		INJURED TAKEN BY 		INJURED TAKEN TO 		EINS RUN REPORT # 	

MSP FORM #1 (5/05)

MSP - CENTRAL RECORDS DIVISION COPY

TA000085104

MARYLAND

UNIVERSAL ACCIDENT CODES: 00 Not Applicable 88 Other 99 or UU Unknown

18 ROAD CHARACTER

- 01 Straight & Level
- 02 Straight & Grade
- 03 Straight & Hillcrest
- 04 Curve & Level
- 05 Curve & Grade
- 06 Curve & Hillcrest
- 07 On Bridge

19 IN LANE:

Direction (Pos. 1)

- N North
- E East
- S South
- W West
- P Parking

Number (Pos. 2)

(Lane #: 0 thru 9)

- R Right Turn
- L Left Turn
- A Acceleration
- D Deceleration
- S Shoulder
- X Crossover
- O Off Road
- G Gore
- M Median
- L (Parking) Lot

24 ROAD CONDITION

- 01 No Defects
- 02 Shoulder Defect
- 03 Holes, Ruts, Etc.
- 04 Foreign Material
- 05 Loose Surface Material
- 06 Obstruction Not Lighted
- 07 Obstruct. Not Signaled
- 08 View Obstructed

30 ROAD DIVISION

- 01 Not Divided
- 02 One Way Road or Street
- 03 Divided: Median strip without Barrier
- 04 Divided: Median strip with Barrier

34 SURFACE CONDITION

- 01 Wet
- 02 Dry
- 03 Snow
- 04 Ice
- 05 Mud

36 JUNCTION RELATIONSHIP

- 01 Non-intersection
- 02 Intersection
- 03 Intersection Related
- 04 Driveway Access

37 HARMFUL EVENT-1

38 HARMFUL EVENT-2

Collision With:

- 01 Other Motor Vehicle in Transport
- 02 Parked Motor Vehicle
- 03 Pedestrian
- 04 Bicycle
- 05 Other Pedalcycle
- 06 Other Conveyance
- 07 Railway Train
- 08 Animal
- 09 Fixed Object
- 10 Other Object

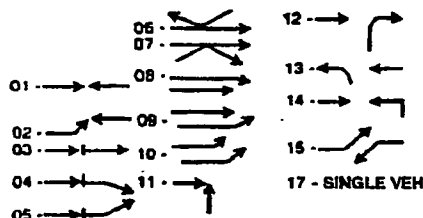
Non-collision:

- 11 Overturn
- 12 Spilled Cargo
- 13 Jackknife
- 14 Separation of Units
- 15 Other Non-Collision

39 FIXED OBJECT STRUCK

- 01 Bridge-Overpass
- 02 Building
- 03 Culvert-Ditch
- 04 Curb
- 05 Guardrail-Barrier
- 06 Embankment
- 07 Fence
- 08 Light Support Pole
- 09 Sign Support Pole
- 10 Other Pole
- 11 Tree-Shrubby
- 12 Construction Barrier
- 13 Crash Attenuator

40 COLLISION TYPE (Veh-to-Veh)



41 LIGHT

- 01 Daylight
- 02 Dawn or Dusk
- 03 Dark: Street Lights On
- 04 Dark: No Street Lights

42 WEATHER

- 01 Clear or Cloudy
- 02 Foggy
- 03 Raining
- 04 Snow or Sleet
- 05 Severe winds

45 SEX

- 01 Male
- 02 Female

48 INJURY

- 01 Not Injured/not known
- 02 Possible Injury
- 03 Inj.—not incapacitated
- 04 Disabled (Incapacitated)
- 05 Fatal

50 MOVEMENT

Vehicle Movement

- 01 Moving Constant Speed
- 02 Accelerating
- 03 Slowing or Stopping
- 04 Starting from Traffic Lane
- 05 Starting from Parked Pos.
- 06 Stopped in Traffic Lane
- 07 Changing Lanes
- 08 Passing
- 09 Parking
- 10 Parked
- 11 Backing
- 12 Making Left Turn
- 13 Making Right Turn
- 14 Making Right Turn on Red
- 15 Making U Turn
- 16 Skidding
- 17 Driverless Moving Vehicle

PED Movement

- 51 Cross/Enter at Intersection
- 52 Cross/Ent Not at Intsect
- 53 Walking/Riding w/Traffic
- 54 Walk/Ride Against Traffic
- 55 Playing
- 56 Standing (continued→)

- 57 Getting On/Off Vehicle
- 58 Push/Work on Vehicle
- 59 Other Working
- 60 Hitchhiking
- 61 Approach/Leave School Bus

51 CONDITION

- 01 Apparently Normal
- 02 Had Been Drinking
- 03 Using Drugs
- 04 Physical Defects
- 05 Other Handicaps
- 06 Ill
- 07 Fatigued
- 08 Apparently Asleep

52 SUBSTANCE DETECTED

- 01 No Substance Detected
- 11 Alcohol Present
- 12 Illegal Drug Present
- 13 Medication Present
- 14 Combined Subst. Present
- 21 Alcohol Contributed
- 22 Illegal Drug Contributed
- 23 Medication Contributed
- 24 Combination Contributed

53 TEST ADMINISTERED

- 01 Test (s) Refused
- 02 Positive Prelim. Test
- 03 Evidence Test Given

56 PED TYPE

- 01 Pedestrian
- 02 Bicyclist
- 03 Other Pedalcyclist
- 04 Rider of animal
- 05 In animal-drawn vehicle
- 06 Machine operator/rider
- 07 Other Conveyance

57 PED LOCATION

- 01 Shoulder
- 02 Curb
- 03 Sidewalk
- 04 Outside Right of Way
- 05 On Roadway at Crosswalk
- 06 On Roadway Not at Crswk
- 07 In School Bus Zone
- 08 In Bikeway

58 PED OBEDIENCE

- 01 No pedestrian signal
- 02 Obeyed pedestrian signal
- 03 Disobeyed ped. signal
- 04 Ped. signal malfunction

59 PED VISIBILITY

- 01 Light Clothing
- 02 Dark Clothing
- 03 Mixed Clothing
- 04 Reflective Material
- 05 Head Light
- 06 Rear Light Reflector
- 07 Head Light & Rear Reflect

61 DR SAFETY EQUIP USE

- 01 None
- 11 Lap Belt Only
- 12 Shoulder Belt Only
- 13 Shoulder/Lap Belt (s)
- 14 Child/Youth Restraint
- 21 MC/Bike Helmet
- 22 MC/Bike Eye Shield Only
- 23 MC/Bike Helmet & Shield
- 31 Air Bag (Only)
- 32 Air Bag & Belt (s)

62 DR EQUIPMENT PROBLEM

- 01 No Misuse/Problem (Use OK)
- 11 Belt (s)/Anchor (s) Broke
- 13 Belt (s) Misused
- 31 Air Bag Failed to Deploy

63 DR EJECTION

- 01 Not ejected; not trapped
- 02 Fully Ejected
- 03 Partially Ejected
- 04 Trapped

66/70 (DIRECTION) GOING/CONTINU

- 01 North
- 02 South
- 03 East
- 04 West

75 (VEH) BODY TYPE

- 01 Motorcycle
- 02 Automobile
- 03 Station Wagon
- 04 Limousine
- 05 Single Truck 2 axles
- 06 Single Truck 3 axles
- 07 Truck Tractor
- 08 Recreational Vehicle
- 09 Farm Vehicle
- 10 Transit Bus
- 11 Cross Country Bus
- 12 School Bus
- 13 Ambulance/Emergency
- 14 Ambulance/Non-Emergency
- 15 Fire Vehicle/Emergency
- 16 Fire Vehicle/Non-Emerg
- 17 Police Veh/Emergency
- 18 Police Veh/Non-Emerg
- 19 Moped
- 20 Pickup Truck
- 21 Van

78 COMM BODY TYPE

- 01 Bus
- 02 Van/Encl. Box
- 03 Truck-Tractor
- 04 Cargo Tank
- 05 Flatbed
- 06 Dump
- 07 Concrete Mixer
- 08 Auto Transporter
- 09 Garbage/Refuse

80 (VEH) MOST HARMFUL EVENT

Collision With:

- 01 Other Motor Vehicle in Transport
- 02 Parked Motor Vehicle
- 03 Pedestrian
- 04 Bicycle
- 05 Other Pedalcycle
- 06 Other Conveyance
- 07 Railway Train
- 08 Animal
- 09 Fixed Object
- 10 Other Object

Non-collision:

- 11 Overturn
- 12 Spilled Cargo
- 13 Jackknife
- 14 Separation of Units
- 15 Other Non-collision

12-1/2/3/4 CONTRIB CIRCUMSTANCE

Driver/Ped/Cyclist

- 01 Under influence of drugs
- 02 Under influence: alcohol
- 03 Under infl. of medication
- 04 Under combined influence
- 05 Physical/ment. difficulty
- 06 Fell asleep, fainted, etc.
- 07 Failed to give full time and attention
- 08 Did not comply with license restrictions
- 11 Fail: yield right of way
- 12 Fail to obey stop sign
- 13 Fail: obey traffic signal
- 14 Fail: obey oth traf contr
- 15 Fail: keep right of center
- 16 Fail: stop for school bus
- 17 Wrong way on one way road
- 18 Exceeded speed limit
- 21 Too fast for conditions
- 22 Followed too closely
- 23 Improper turn
- 24 Improper lane change
- 25 Improper backing
- 26 Improper passing
- 27 Improper signal
- 28 Improper parking
- 29 Interference/Obstruction by passenger

Ped/Cyclist ONLY

- 31 Illegally in roadway
- 32 Bicycle violation
- 37 Clothing not visible

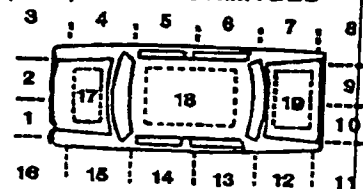
Environment

- 41 Smog, smoke
- 42 Sleet, hail, freeze, rain
- 43 Blowing sand, soil, dirt
- 44 Severe crosswinds
- 45 Rain, snow
- 46 Animal
- 47 Vision obstruction (incl. blinded by sun or lights)
- Vehicle
- 51 Brakes
- 52 Tires
- 53 Steering
- 54 Lights
- 55 Windows/windshield
- 56 Wheel (s)
- 57 Trailer coupling
- 58 Cargo
- Road
- 61 Wet
- 62 Icy or slushy
- 63 Debris or obstruction
- 64 Ruts, holes, bumps
- 65 Road under const/maint.
- 66 Traffic control device inoperative
- 67 Shoulders low, soft, high

84 (VEH) TOWED VEHICLES

- 01 1 Semi Trailer
- 02 1 Semi + 1 Full Trailer
- 03 1 Full Trailer
- 04 2 Full Trailers
- 05 3 Trailers
- 06 Automobile
- 07 Utility Trailer
- 08 Boat Trailer
- 09 Camper
- 10 Travel/Home Trailer
- 11 Mobile Home
- 12 Farm Equipment

/88 FIRST/MAIN IMPACT PTS (VEH) AREAS DAMAGED



- 17 Hood
- 18 Roof/Top
- 19 Trunk
- 20 Windshield
- 21 Windows
- 22 Underside
- 23 Overturn (overall)

94 (VEH) DAMAGE EXTENT

- 01 No Damage
- 02 Superficial or Minor
- 03 Functional
- 04 Disabling
- 05 Destroyed

96 SEAT POSITION

- 01 Driver/MCycle Operator
- 02 Center Front Seat
- 03 Right Front Seat
- 04 Left Rear/MC Passenger
- 05 Center Rear Seat
- 06 Right Rear Seat
- 07 Other Seat IN Vehicle
- 08 In Cargo Area
- 09 OUTSIDE Vehicle

100 SEX

- 01 Male
- 02 Female

102 SAFETY EQUIPMENT USE

- 01 None
- 11 Lap Belt Only
- 12 Shoulder Belt Only
- 13 Shoulder/Lap Belt (s)
- 14 Child/Youth Restraint
- 21 MC/Bike Helmet
- 22 MC/Bike Eye Shield Only
- 23 MC/Bike Helmet & Shield
- 31 Air Bag (Only)
- 32 Air Bag & Belt (s)

103 EQUIPMENT PROBLEM

Adult/Youth Restraint

- 01 No Misuse/Problem (Use OK)
- 11 Belt (s)/Anchor (s) Broke
- 13 Belt (s) Misused
- 31 Air Bag Failed to Deploy
- Child Restraint
- 42 Facing Wrong Way
- 43 Not Anchored Right
- 44 Anchor Not Secure
- 45 Not Strapped Right
- 46 Strap/Tether Loose
- 47 Size/Type Improper

104 PASS INJURY SEVERITY

- 01 Not injured/not known
- 02 Possible injury
- 03 Inj.—not incapacitated
- 04 Disabled (Incapacitated)
- 05 Fatal

105 EJECTION

- 01 Not ejected; not trapped
- 02 Fully Ejected
- 03 Partially Ejected
- 04 Trapped











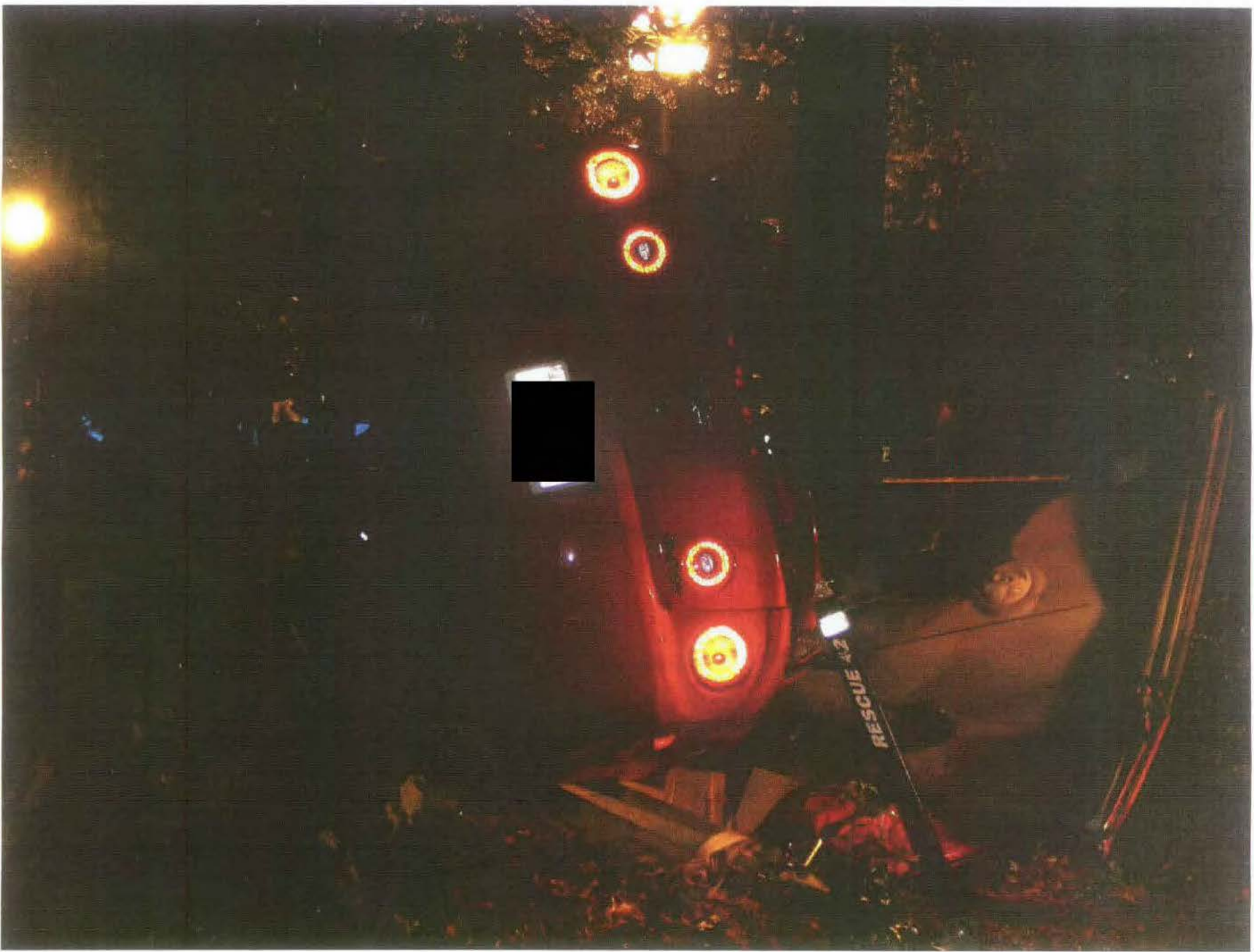


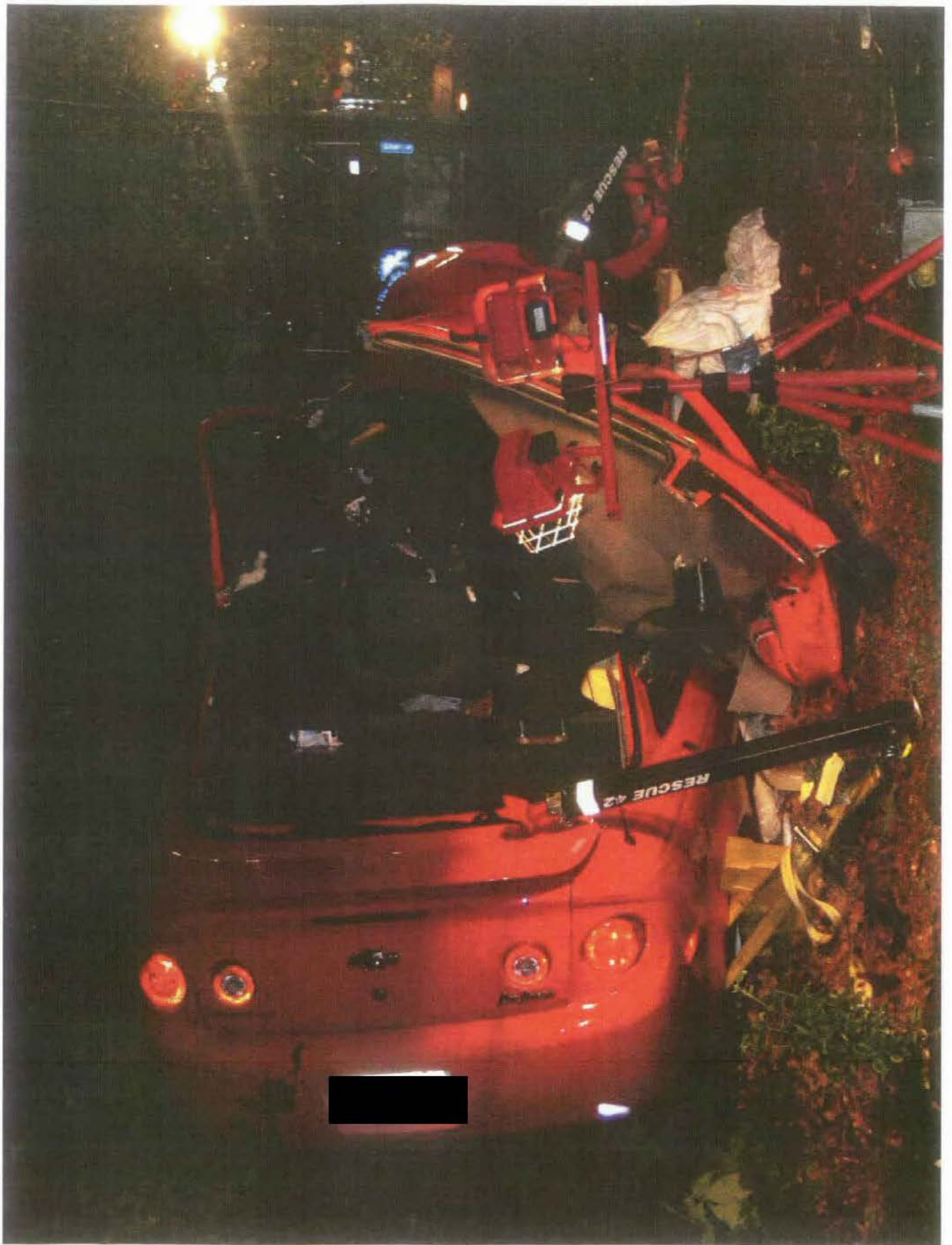


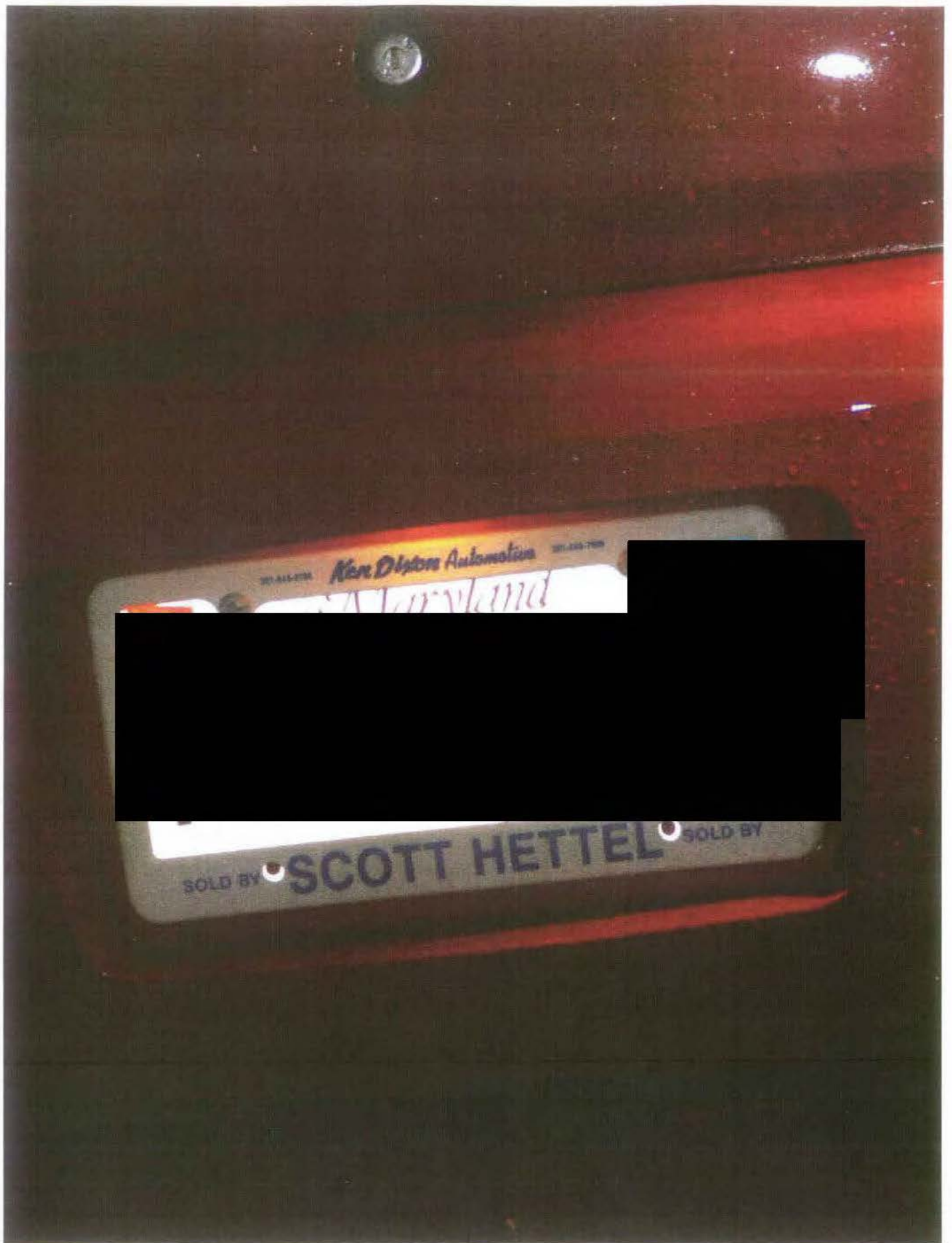
























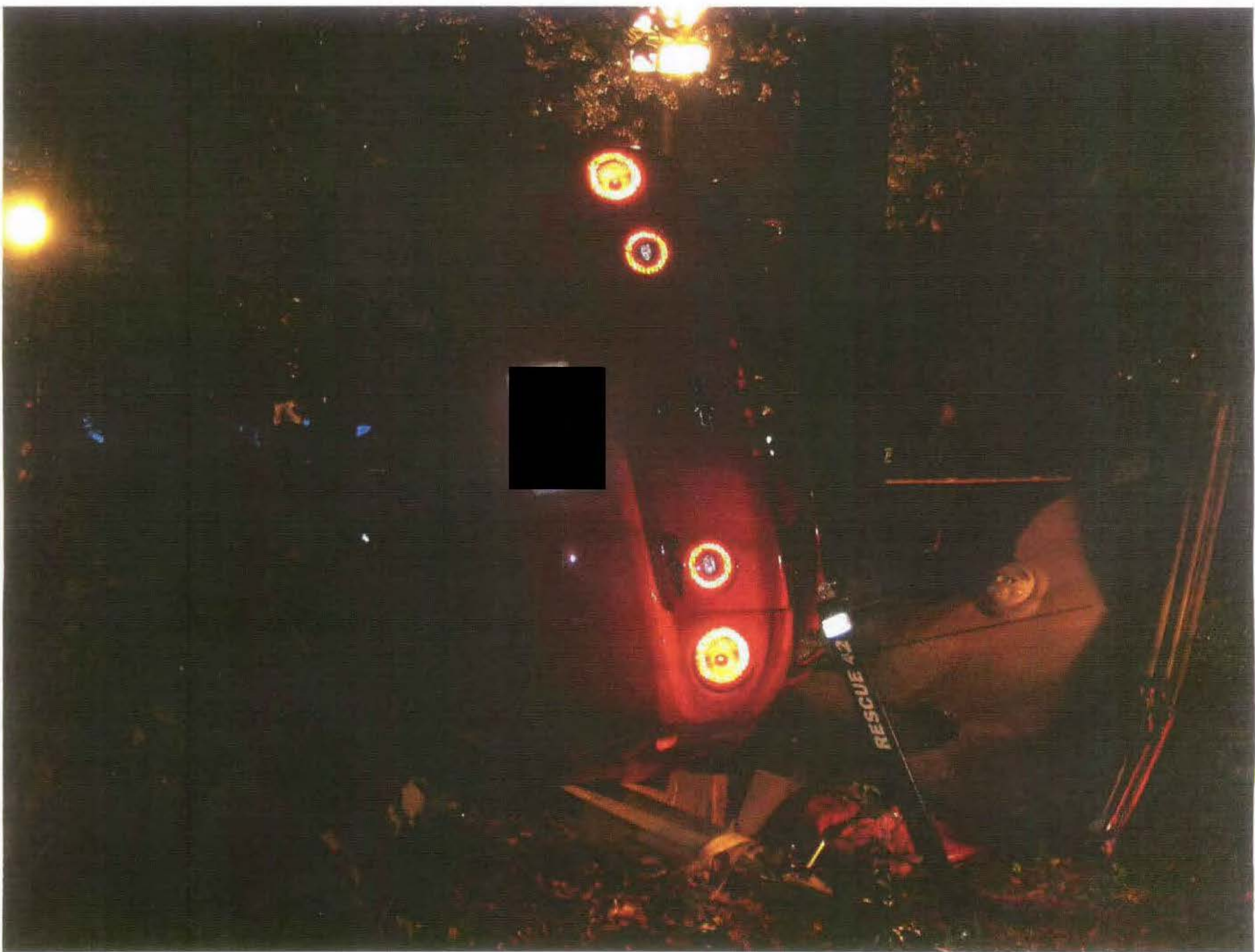








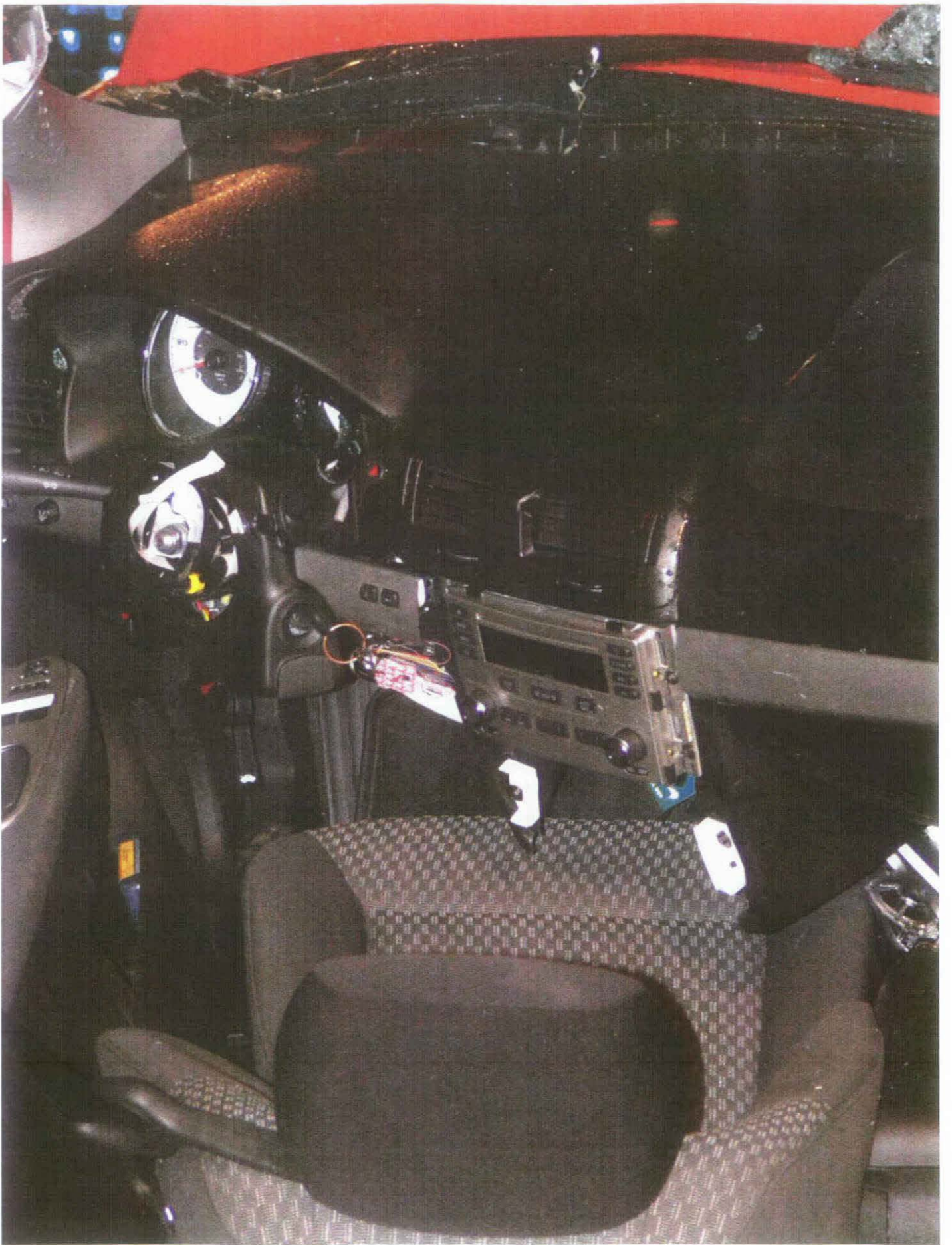
















To protect the privacy of individuals, NHTSA does not make medical records available to the public without authorization. For this reason, documents falling into this category have not been included in this complaint record.

VALID ONLY
WITH
IMPRESSED
SEAL

I HEREBY CERTIFY THAT THE ATTACHED IS A TRUE COPY OF A
RECORD ON FILE IN THE DIVISION OF VITAL RECORDS

DATE ISSUED:
AUG 19 2005

STATE REGISTRAR OF VITAL RECORDS

Please Type or Print in Black Indelible Ink. Ensure All Copies Are Legible.

State of Maryland / Department of Health and Mental Hygiene

1- For State Registrar AMOND ITEM #275284 PER ME C8488/1/2005 of Death		Reg. No. 2005 25513	
1. Decedent's Name (First, Middle, Last) [REDACTED]		2. Date of Death Month Day Year JULY 29, 2005	
3. Time of Death 0528 AM		4. Facility Name (If not institution, give street and number) CIVISTA MEDICAL CENTER	
5. Social Security Number [REDACTED]		6. City, Town, or Location of Death LAPLATA	
7. Sex 1 Male 2 Female 2 Female		8. Date of Birth Month Day Year [REDACTED]	
9. Age (In yrs. last birthday) Yrs. [REDACTED]		10. County of Death CHARLES	
11. State MARYLAND		12. Birthplace (State or Foreign Country) MARYLAND	
13. County CHARLES		14. Inside City Limits 1 Yes 2 No 2 No	
15. Street and Number [REDACTED]		16. Zip Code [REDACTED]	
17. Citizen of What Country? U.S.A.		18. Race - American Indian, Black, White, etc. Specify: WHITE	
19. Marital Status 1 Never Married 2 Married 3 Widowed 4 Divorced 2 Married		20. Was Decedent Ever in U.S. Armed Forces? 1 Yes 2 No 2 No	
21. Was Decedent of Hispanic Origin? (Specify Yes or No. If Yes, specify Cuban, Mexican, Puerto Rican, etc.) 1 Yes 2 No 2 No		22. Decedent's Usual Occupation (Give kind of work done during most of working life. DO NOT use retired) PROCESSOR	
23. Decedent's Education (Specify only highest grade completed) Elementary/Secondary (0-12) 12 College (1-4 or 5+) 12		24. Kind of Business/Industry ALLIANCE TITLE MNGT	
25. Father's Name (First, Middle, Last) [REDACTED]		26. Mother's Name (First, Middle, Maiden Surname) [REDACTED]	
27. Informant's Name Relationship (Type, Print) [REDACTED] - FATHER		28. Mailing Address (Street and Number or Rural Route Number, City or Town, State, Zip Code) [REDACTED] INDIAN HEAD, MD [REDACTED]	
29. Method of Disposition 1 Burial 2 Cremation 3 Removal from State 4 Donation 5 Other (Specify) 2 Cremation		30. Place of Disposition (Name of cemetery, crematory or other place) TRINITY MEMORIAL GARDENS 8-2-05 WALDORF, MARYLAND	
31. Signature of Funeral Service Licensee [Signature] MO0479		32. Name and Address of Facility RAYMOND FUNERAL SERVICE, P.A. LAPLATA, MARYLAND 20646	
33. Part I. Enter the disease, or complications that caused the death. Do not enter the mode or type, such as Suicide or Respiratory Arrest. Immediate Cause (Final disease or condition resulting in death) Abdominal Injuries Sequentially list conditions, if any, leading to immediate cause. Enter Underlying Cause (Disease or injury that initiated events resulting in death) Last		34. Approximate Interval Between Onset and Death [REDACTED]	
35. IF FEMALE: 36. Was decedent pregnant in the past 12 months? 1 Yes 2 No 3 Unknown 2 No		37. 23c. If yes, outcome of pregnancy 1 Live birth 2 Fetal death 3 Ectopic pregnancy 4 Pregnant at time of death 5 Other (specify) 2 Fetal death	
38. Part II. Other significant conditions contributing to death but not resulting in the underlying cause given in Part I.		39. 23d. Did tobacco use contribute to the cause of death? 1 Yes 2 No 3 Probably 4 Unknown 2 No	
40. 24a. Was an autopsy performed? 1 Yes 2 No 3 Unknown 2 No		41. 24b. Were autopsy findings available prior to completion of cause of death? 1 Yes 2 No 3 Unknown 2 No	
42. 25. Was case referred to medical examiner? 1 Yes 2 No 2 No		43. 26. Place of Death (Check only one) Hospital: 1 Inpatient 2 ER/Outpatient 3 DOA Other: 4 Nursing Home 5 Residence 6 Other (Specify) 3 DOA	
44. 27. Manner of Death 1 Natural 2 Accident 3 Suicide 4 Homicide 5 Pending investigation 2 Accident		45. 28a. Date of Injury (Month, Day Year) 7/29/05	
46. 28b. Time of Injury 0342 M		47. 28c. Injury at Work? 1 Yes 2 No 2 No	
48. 28d. Describe how injury occurred UNKNOWN Driver struck Tree		49. 28e. Location (Street and Number or Rural Route Number, City or Town, State) 8856 Berry Court Columbia, MD	
50. 29a. Certify (Check only one) 1 Certifying Physician: To the best of my knowledge, death occurred at the time, date and place, and due to the cause(s) and manner as stated. 2 Medical Examiner: On the basis of examination and/or investigation, in my opinion, death occurred at the time, date and place, and due to the cause(s) and manner as stated.		51. 29b. Signature and title of Certifier [Signature] OCME	
52. 29c. License number OCME		53. 29d. Date signed (Month, Day, Year) JULY 29, 2005	
54. 30. Name and address of person who completed cause of death (Item 23a) (Type, Print) J. LARON WICKERMAN 111 PENN STREET, BALTIMORE, MARYLAND, 21201		55. 31. Date filed (Month, Day, Year) AUG 04 2005	
56. 32. Registrar's Signature [Signature]		57. 33. Date of Death JULY 29, 2005	